

25STCV15668 25STCV15668

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-21
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C07%2F21%2F2026
Source SHA-256: 28d5547d2accc990016b47a0f77673cb0c3048e7ae fee952e63f2ef2bd25fa64

Case Number: 25STCV15668 Hearing Date: July 21, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MARTINA GONZALEZ
MALDONADO, ET AL.

Plaintiff,

vs.

DORSET VILLAGE PARTNERS L.P., ET AL.

Defendant.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25STCV15668

[TENTATIVE] ORDER GRANTING PLAINTIFF'S
MOTION FOR ORDER TO SUBSTITUTE PLAINTIFF'S SUCCESSOR-IN-INTEREST IN PLACE OF
DECEDENT PLAINTIFF JUAN RAMON PADILLA

Dept. 506

8:30 a.m.

JULY 21, 2026

On May 30, 2025, Plaintiffs
filed a complaint alleging (1) breach of the warranty of habitability; (2)
negligence; (3) breach of quiet enjoyment; (4) nuisance; (5) Business and
Professions Code section 17200; (6) intentional infliction of emotional
distress; (7) violation of Los Angeles Municipal Code Section 45.30, et seq.;
(8) violation of Civil Code section 1942.4; (9) violation of Civil Code section
1942.5.

On
October 13, 2025, Plaintiffs filed the instant Motion to Substitute Plaintiffs'
Successor in Interest in place of Decedent Plaintiff Juan Ramon Padilla. No opposition or reply was filed as of July
16, 2026.

DISCUSSION

"A pending action or proceeding does not abate by the
death of a party if the cause of action survives." (CCP §377.21.)

“On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.”

(CCP §377.31.)

“The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

(1) The decedent's name.

(2) The date and place of the decedent's death.

(3) ‘No proceeding is now pending in California for administration of the decedent's estate.’

(4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.

(5) Either of the following, as appropriate, with facts in support thereof:

(A) ‘The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.’

(B) ‘The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.’

(6) ‘No other person has

a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.'

(7) 'The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.'" (CCP §377.32.)

Plaintiffs'

submit the declaration of Plaintiff Martina Gonzalez Maldonado, wife of decedent Plaintiff Juan Ramon Padilla.

(Motion, M. Maldonado Dec., ¶1.) Maldonado

testifies that she is Padilla's successor-in-interest based on her status as surviving wife. (Id. at ¶¶2, 4.) Maldonado testifies Padilla died on August 24, 2025. (Id. at ¶3, Ex.

B.) Maldonado confirms that there is no

proceeding pending in California for administration of Padilla's estate. (Id. at ¶4.) Maldonado testifies that no other person has

a superior right to continue this action or to be substituted in place of the decedents in the pending action. (Id.

at ¶7.) Maldonado testifies Padilla

died without any other person who has priority over me under Probate Code section 6402, subdivisions (a)-(c). (Id.

at ¶8.) Maldonado signed the

declaration under penalty of perjury under the laws of the State of California. (Id. at p. 3.) Plaintiffs submit a declaration satisfying

the requirements to substitute Maldonado as Padilla's successor-in-interest.

CONCLUSION

Accordingly,

Plaintiffs' Motion to Substitute Plaintiffs' Successor In Interest in Place of

Decedent Plaintiff Juan Ramon Padilla is GRANTED. Plaintiff Martins Gonzalez Maldonado is substituted in place of Plaintiff Juan Ramon Padilla as Padilla's successor-in-interest.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

 indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this ____ day of ____ 2026

Hon. Thomas D.
Long

Judge of the Superior
Court